

authority of a trustee, executor, or tenant for life, renew for his own benefit (*g*).

7. **Trustee may not sell the right of renewal.** — And if, instead of taking a renewal himself, the trustee, executor, or tenant for life, dispose of the right of renewal for a valuable consideration, the purchase-money will be subjected in equity to the trusts of the settlement; for if a person cannot appropriate the renewal to himself, the Court will not suffer him to sell for his own benefit (*h*).

8. **What particular circumstances will not vary the general rule.** — In the preceding cases the rule of equity [*183] will still hold good, * though the lease had not customarily been renewed (*a*), or the period of the old lease had actually expired (*b*), or the renewal was for a different term, or at a different rent (*c*), or, instead of a chattel lease, was for lives (*d*), or other lands were demised not comprised in the original lease (*e*), or the landlord refused to renew to the *cestui que trust* (*f*), or the co-trustees refused to concur in a renewal for the *cestui que trust's* benefit (*g*), or the lessee having purchased the immediate reversion, being a term of years, took the renewal from the superior landlord (*h*).

9. **Nesbitt v. Tredennick.** — But where a lessee of lands in Ireland charged a lease with a jointure, and then *mortgaged it* to Newcomen and again to Nesbitt, and afterwards the rent falling in arrear, the landlord recovered possession upon ejectment, and the lessee allowed six months (the period of redemption by the lessee fixed by the statute) to pass with-

3 Atk. 538; *Mulvany v. Dillon*, 1 B. & B. 417.

(*g*) *Edwards v. Lewis*, 3 Atk. 538.

(*h*) *Owen v. Williams*, Amb. 734.

(*a*) See *Featherstonhaugh v. Fenwick*, 17 Ves. 298; *Mulvany v. Dillon*, 1 B. & B. 409; *Eyre v. Dolphin*, 2 B. & B. 290; *Killick v. Flexney*, 4 B. C. C. 161.

(*b*) *Edwards v. Lewis*, 3 Atk. 538, per Lord Hardwicke.

(*c*) *Mulvany v. Dillon*, 1 B. & B. 409; *James v. Dean*, 7 Ves. 383; S. C. 15 Ves. 236, &c.

(*d*) *Eyre v. Dolphin*, 2 B. & B. 299.

(*e*) *Giddings v. Giddings*, 3 Russ. 241; [*Re Morgan*, 18 Ch. D. 93.] But the lease of the additional lands will not be a graft, *Acheson v. Fair*, 2 Conn. & Laws. 208.

(*f*) *Keech v. Sandford*, Sel. Ch. Ca. 61; *Griffin v. Griffin*, 1 Sch. & Lef. 353.

(*g*) *Blewett v. Millett*, 7 B. P. C. 367.

(*h*) *Giddings v. Giddings*, 3 Russ. 241.